

24VECV03566 24VECV03566

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24VECV03566 Hearing Date: July 22, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LEIDY HERRERA, an individual,

Plaintiff(s),

vs.

BPP ALPHABET MF SHERMAN CIRCLE LLC, a corporation; GREYSTAR CALIFORNIA, INC., a corporation; and DOES 3 to 20, inclusive,

Defendant(s).

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CASE NO.: 24VECV03566

ORDER DENYING PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY

I. BACKGROUND

This is a general negligence action. Plaintiff, Leidy Herrera ("Plaintiff") alleges Defendant, BPP Alphabet MF Sherman Circle LLC ("Defendant") negligently maintained their property. As a result, Plaintiff slipped and fell in the lobby of Defendant's property due to a wet floor, causing Plaintiffs' injuries.

Plaintiff now moves to compel Defendant, Greystar California, Inc., designated as DOE 2, responses to her Form Interrogatories (Set One), Special Interrogatories (Set One), Request for Admissions (Set One), and Request for Production of Documents (Set One). Plaintiff also moves to compel Defendant, Greystar California, Inc., to designate and produce its Person Most Qualified under Code of Civil Procedure § 2025.230, and to produce for deposition its employee witness and/or the security guard on duty at the time of the incident, within seven days of the Court's order as to otherwise ordered, pursuant to Code of Civil Procedure § 2025.450.

II. PROCEDURAL HISTORY

On July 29, 2024, Plaintiffs filed a Complaint alleging (1) General Negligence and (2) Premises Liability.

On September 13, 2024, Defendant filed an Answer.

On September 16, 2025, Plaintiff filed to Amend their Complaint.

On December 15, 2025, Plaintiff filed to Amend their Complaint.

On February 25, 2026, Defendant Greystar California, Inc., filed an Answer.

On May 4, 2026, Defendant filed a Motion for Summary Judgment.

On June 29, 2026, Plaintiff filed a Motion to Compel Discovery Responses.

On July 8, 2026, the Court advanced the hearing on the instant Motion and set a briefing schedule for both sides to file their Opposition and Reply briefs. Neither were filed.

III. LEGAL STANDARD

A. Requests for Production

A party upon whom a demand for the production of documents has been made has 30 days after service of the demand to respond. (See Code Civ. Proc. § 2031.260(a).)[1] The propounding and responding parties may agree to extend the time for response. (See Code Civ. Proc. § 2031.270(a).) When a party fails to serve a timely response, the propounding party's remedy is to seek a motion to compel response. (See Code Civ. Proc. § 2031.300(b).) A responding party that does not provide responses waives the right to object to the demand, including objections based on privilege or work product. (See Code Civ. Proc. § 2031.300(a).)

B. Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (See Code Civ. Proc. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

C. Requests for Admission

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc. § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared..." (Code Civ. Proc. § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

D. Compel PMK Depo

Code of Civil Procedure § 2025.450(a) provides that, “[i]f, after service of a deposition notice, a party to the action... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it..., the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.”

Code of Civil Procedure § 2025.410(a), provides that, “[a]ny party served with a deposition notice that does not comply with [the notice requirements in Code of Civil Procedure §§ 2025.210 through 2025.290] waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.”

IV. ANALYSIS

Plaintiff improperly combines four separate requests for relief into one Motion to Compel. While there is no section formally requiring separate motions under the Code of Civil Procedure, discovery motions require separate filing fees; one party, one set of discovery, one motion. (See Govt. Code § 70617(a)(4) (setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing).) Combining discovery motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke’s Hospital* (2003) 114 Cal.App.4th 457, 460.) Here, Plaintiff paid one filing fee to compel responses to one discovery set (Form Interrogatories (Set One)) from Defendants.

Accordingly, the Court DENIES Plaintiff’s Motion to Compel.

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V. DISCOVERY SANCTIONS

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel . . .” responses to interrogatories or production demands, absent substantial justification or other circumstances that make imposing the sanctions unjust. (Code Civ. Proc. § 2030.290(c), § 2031.300(c).)

Plaintiff requests discovery sanctions in connection with each of her discovery Motions.

The Court DENIES Plaintiff’s request as Plaintiff’s Motions were denied.

VI. CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff’s Motions to Compel Discovery and Discovery Sanctions.

IT IS SO ORDERED.

DATED: July 21, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.